



JAMAICA CONSTABULARY FORCE

CIB HEADQUARTERS
Standard Operating Procedures for Monitoring Investigations Services and Processes and
CIB Commanders & Area Crime Officers Performances

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Introduction

This standard operating procedure is applicable to CIB HQ which captures the roles and responsibilities of ACP CIB in keeping with the JCF Standing Orders, SOPs, Policies and Regulations. The goal of this SOP is to ensure that there is a system in place to guide the operations of the office of ACP CIB with such support as is necessary to comply and meet the mandate of the JCF's Quality Management System.

In order to meet the organizations Quality Management objectives, ACP must have its own set of objectives in keeping with the mandate of the office. The objectives of the SOP are:

1. To ensure the highest quality of management and accountability of CIB assets;
2. Set standards to assess the performance of CIB Divisional Commanders & Area Crime Officers;
3. To ensure performance of CIB Divisional Commanders & Area Crime Officers meet set objectives;
4. To ensure standards are set and maintained to monitor, measure, analyze and evaluate the investigations' services and process in the JCF; and
5. To guide the day-to-day activities in ensuring that the various departments' responsibilities are carried out to support the mandate of the Branch.

ACP CIB responsibilities include:

- i. Reviewing and maintaining the CIB structure across the JCF
- ii. Oversee, maintain and monitor investigation standard and processes island wide;
- iii. Oversee the effective and efficient management of all CIB Divisions;
- iv. Set standards for monitoring the performance of CIB Commanders and Area Crime Officers; and
- v. Assess the performance of CIB Commanders and Area Crime Officers.

A. Monitoring of Audits and Inspections

In order for CIB HQ to oversee and monitor the investigation standard and processes, the following applies:

1. ACP CIB shall develop, issue and communicate standard operating procedures for conducting audits and inspections of the JCF's investigations' services and processes.
2. ACP CIB shall ensure that Area Crime Officers conduct bi-annual audits of the investigation processes through the Divisional Case Registry (DCR) of all Divisions under his management.
3. ACP CIB will monitor inspections of the DCRs and Station Managers by Divisional Crime Officers (DCOs) and Divisional Detective Inspectors (DDIs) respectively through the ACOs.



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4. The first and second audit shall be done by specified timelines as indicated by ACP CIB during the calendar year. Notwithstanding, the first audit should normally be done by the first half of each calendar year.
5. The second audit shall be done as instructed by ACP CIB which may be done outside the calendar year to cover the entire second half of the year or the void period after the first audit of the outgoing calendar year.
6. Inspections shall be against the Crime Reporting and Case Management Policy & SOP.
7. The Area Crime Officer shall submit a report to ACP CIB within the specified timeline as instructed or as outlined in any SOP developed for auditing.
8. Inspections reports of DDIs will be submitted to the DCO who will communicate with the Divisional Commander and then forward the findings to the Area Crime Officer for action.
9. Inspection reports of DCO will be submitted to the Divisional Commander and the Area Crime Officer who will conduct an analysis and take the appropriate action. Thereafter submit a report to ACP Area and CIB.
10. ACP CIB on receiving these reports (for audits and inspections) will evaluate the findings to identify strengths and weaknesses in the investigation services and make a decision.
11. ACP CIB in making a decision may:
 - i. communicate with the Area Crime Officers and direct that they cause the shortcomings identified during their audit to be corrected within a specific timeline.
 - ii. instruct the ACO to take the necessary action to deal with any issues identified.
 - iii. require the ACO to provide written updates to ACP CIB until the shortcomings are rectified.
 - iv. convene a meeting with the Divisional Commander, Area and Divisional Crime Officers to provide an account based on the findings and may be tasked accordingly.
12. ACP CIB shall compile a report and submit to DCP Crime & Security which will include, his findings, any decision made, or action taken along with his recommendations.

B. Monitoring of performance and management of CIB Divisional Commanders and Area Crime Officers

1. ACP CIB will convene meetings at specified times during the calendar year with the Area, Divisional Crime Officers and CIB Divisional Commanders to discuss crime prevention and investigation strategies, performance and management related issues among others.
2. These meetings may also include consultations to develop standards for the effective and efficient management of the JCF investigations' services and processes.



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3. In order to effectively and efficiently monitor the performance of CIB Divisional Commanders and Area Crime Officers, these officers will be assessed and following criteria may be used:
 - a) In keeping with the JCF Policy and SOP for Planning and Performance Management, CIB Divisional Commanders shall be assessed:
 - i. on the timeliness of completing and submitting their Divisional Policing Plans;
 - ii. submitting on a timely basis monthly performance matrix to ACP CIB and PRDB; and
 - iii. meeting performance targets as set.
 - b) Divisional Commanders and Area Crime Officers will also be assessed on complying with instructions and directives as given by ACP CIB;
 - c) Area Crime Officers conducting their audits as instructed and submitting their reports on a timely basis;
 - d) CIB Divisional Commanders ensuring that inspections of their investigations' services and processes are done and provide reports to ACP CIB through SSP Policy and Quality Management;
 - e) Meet performance targets as given by ACP CIB;
 - f) The monitoring and management of investigations and investigations' services and processes in the Division and within the Area as applicable;
 - g) The compliance level with various policies and procedures as decided by ACP CIB; and
 - h) Any other criteria that ACP CIB may decide from time to time.

C. Monitoring investigations of selected cases through Case reviews and conferences

ACP CIB will from time-to-time monitor special and specific investigations by holding case reviews and conferences.

Introduction

CIB HQ will provide leadership to CIB island wide in regard to investigations. Headquarters will monitor the quality and standard of investigations through case reviews and conferences. Case reviews are used to explore investigative strengths and weaknesses for a comprehensive and airtight case. Case reviews can be thought of as a type of risk management tool that aims to use the concepts of systems audit in order to lessen the possibility of both typical and recurrent errors.

Reviews will also note the investigation's strengths and weaknesses so that they can be included in or improved upon in subsequent investigations. These will provide a new standpoint to identify areas where support, guidance and appropriate direction to investigators will be supplied, particularly, to gradually develop policies and procedures for investigation based on best practices.



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Purpose

CIB HQ will monitor some major and minor investigations through the holding case reviews and conferences. ACP CIB will, at his discretion, through SSP investigation (metro or rural) direct that a case review/conference be held where he is of the opinion that the matter is one that falls within any of the following categories:

1. Any matter concerning a member of the security forces;
2. Any matter involving a public official or a politician;
3. Any matter that attracts the public's interest;
4. Multiple Murders, Shootings, Robberies;
5. Matters involving foreign nationals;
6. Cold case(s) where fresh evidence has emerged;
7. Cases generated from the Integrated Ballistic Identification System (IBIS), Multi-Biometric Identification System (MBIS) and DNA match reports;
8. Any matter as directed by the Commissioner of Police or DCP Crime and Security Portfolio.

Case reviews and conferences must evaluate the investigative processes to ensure that:

1. it conforms to existing policies, guidelines and procedures;
2. it is thorough and all relevant evidence required are properly identified;
3. it has been conducted with integrity and impartiality; and
4. no investigative opportunities have been overlooked.

It is important that the case review process supports an open, just, impartial and learning culture and is not perceived as a disciplinary type hearing which may intimidate, embarrass and undermine the confidence of investigators. However, ACP CIB may direct that the JCF disciplinary machinery be activated should there be any policy, SOP or regulation breached by investigators.

The Objectives

The objectives of Case Reviews & Conferences will be:

1. To reduce the likelihood of problems escalating to the detriment of the investigation;
2. To improve individual performance through the identification and sharing of development opportunities;
3. To introduce new perspective in an investigation;
4. To avoid the possibility of re-investigating the case;
5. To protect investigators from possible civil suit;
6. To provide support to investigators during prolonged or difficult investigations;
7. To increase public confidence on the integrity and effectiveness of police investigations; and
8. To disseminate best investigative practices.



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9. To identify and seize evidentiary material that will bolster the investigation.
10. To bring the investigation to a close.

CIB HQ will continue to utilize the case reviews/conferences to ensure that selected cases are thoroughly investigated.

Standard Operating Procedure

1. ACP CIB through SSP Investigations (metro or rural) will cause a request to be made for a copy of the relevant case file from the Divisional Commander or the Area or Divisional Crime Officer, prior to setting a review date;
2. On receipt of the case file, CIB legal Officer and the Review & Investigations Team (RIT) may vet and review the file whilst the Analyst Unit (AU) may conduct an analysis of case and submit findings to SSP Investigations for action;
3. SSP Investigation will then review the findings and brief ACP CIB;
4. ACP CIB and/or SSP Investigation may conduct a pre-review before the actual review in the absence of the participants. This will prepare the CIB HQ Team to identify in advance, any investigative opportunity that might have been overlooked and to concentrate on the initial findings they may want to emphasize during the actual case review;
5. SSP Investigations (metro or rural) may require the Crime Officer and the Area Crime Officer to pursue investigative leads and provide additional documents especially on matters which they deemed necessary prior to the actual case review;
6. SSP Investigation in consultation with ACP CIB will appoint a date for the case review. The venue of this review shall be decided by ACP CIB;
7. SSP Investigation will then cause the Analyst Unit (AU) at CIB HQ to contact the relevant persons and advise them of the date, time and place of the review. This will be followed up with an email. This review may be virtual or hybrid. ***See Appendix 1 of the list of persons who should be in attendance at the review.***
8. The AU will provide timely reminders to all invitees of the date, time and place for the case review. These reminders will vary from case to case, however, a reminder must be sent at least 24 hours prior to the date;
9. This review will be chaired by ACP CIB or his designate and an attendance record must be made of all the attendees;



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10. On the day of the review and on its commencement, all personnel in attendance must identify themselves by stating rank/post held and organization/division;
11. At this review, the investigating officer or someone designated by the most senior investigator from the Division shall present (electronic or verbal) a chronological summary of all the relevant facts of the case including actions taken, reviews done and the progress. It is to be noted that ACP CIB or his designate may direct otherwise;
12. Investigative gaps identified shall be highlighted to avoid repetition and strong investigative practices must be commended and encouraged for other investigations;
13. Investigative tasks generated must be recorded, assigned to a named person and timelines given. If for a valid or justifiable reason a member cannot perform the tasks assigned, it is the duty of the most senior supervisor to ensure tasks are reassigned and duly complied with;
14. The chairman must ensure that all tasks generated at previous reviews are assessed for compliance and completion. Tasks not action must be re-tasked and a justification provided by the responsible officer;
15. Depending on the progress of the investigation, new tasks may be generated and the process from standard #13 must be followed;
16. On conclusion of the review, the minutes/tasking of the review must be filed for accountability purposes and ACP CIB, or his designate will direct whether or not a follow up review is required.
17. The AU will monitor the performance and compliance of tasks generated and submit reports to ACP CIB or SSP Investigations as requested.

CASE CONFERENCE

A case conference is a meeting between the police and other relevant stakeholders including prosecutors, to discuss the progress of a criminal investigation.

The stakeholders who should be present at a case conference include: the Lead Investigator, Crown Counsel or Clerk of Court, witnesses and/or complainants and any other person from Appendix 1.

The purpose of a case conference is to:

- Share information and evidence gathered during the investigation;
- Discuss the strengths and weaknesses of the case;



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- Identify any potential areas of agreement or disagreement;
- Explore possible resolutions, such as a plea bargain;
- Make decisions about the next steps in the investigation or prosecution.

Case conferences are an important part of the criminal justice process. They allow the police and the prosecution team to work together to resolve cases efficiently and fairly. This should be conducted in a professional and respectful manner. All participants should be given the opportunity to express their views, and their concerns should be addressed. The goal of a case conference is to ensure that the case is progressing to determine:

- i. what evidence is required for closure, or,
- ii. assessing the value of evidence already obtained,
- iii. determine whether legal standards for evidence gathered are complied with,
- iv. set tasks to explore other investigative avenues, and
- v. determine the pathway or strategy for ethical and successful prosecution.

See below additional tips for conducting a successful case conference.

- **Be prepared.** Before the conference, make sure all of the relevant information and evidence are available.
- **Be clear** about the purpose of the conference. What is it hoped to achieve?
- **Be respectful.** Listen to the views of all participants and address their concerns.
- **Be flexible.** Be willing to compromise and explore different options.
- **Be professional.** Conduct the conference in a fair and impartial manner.

While case conferences are similar to case reviews, the former adopts a multiagency approach. It is synonymous with partnership and consultation with critical stakeholders to identify the investigative weaknesses and strengths as well as to identify opportunities for completing an impermeable case.

The procedure above for conducting case reviews must be followed with such modification as required as to the list of personnel/stakeholders who are to be in attendance.

D. Identifying training needs

ACP CIB is tasked with the responsibility to ensure adequate personnel are trained and build capacity within the CIB. Consequently, it is imperative that training weaknesses and strengths are identified to undertake the task of investigating reports at a high standard. One of ACP CIB's responsibility is to identify training gaps and make recommendations to Training Branch.

Training needs will be identified internally (CIB HQ) and externally (island-wide) which is the beginning of the process to have persons trained. The following SOP will be utilized to identify those needs:



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1. ACP CIB will through SP Administration CIB HQ cause Area Crime Officers to request from each Divisional Crime Officer a list of training needs for their operatives.
2. The Divisional Crime Officer shall cause this list to be prepared and submitted to the Area Crime Officer for analysis.
3. This analysis will include the frequency of a particular area/s identified across the Area and prepare a list prioritizing the training area as deemed necessary.
4. Each Division may have a unique deficiency and as a consequence, the analysis must also outline the peculiar needs of each Division.
5. Area Crime Officer will submit that list with a summary and recommendation of the areas of training that are priority as well as the Division that is of priority and/or each Division's priority.
6. CIB Divisional Commanders will also identify the training needs of their operatives and will conduct an analysis of the area/s of training needs and list the areas of priority according to their needs.
7. CIB Divisional Commanders will submit that list to ACP CIB or SP Administration CIB HQ.
8. SP Administration CIB HQ will conduct an analysis of all the reports received and identify and list in order of priority the areas of training needed, the Division and the training that is required to develop and eliminate any deficiency by its operatives (uniform and non-uniform) in the investigations' services.
9. SP Administration CIB HQ will then prepare and submit a report of the findings with recommendation to ACP CIB for further action.
10. ACP CIB will evaluate the report and this report with his own recommendation to ACP Training and DCP Crime and Security for action.
11. ACP Training will be responsible for developing training programme for the areas identified.
12. Notwithstanding the above, ACP CIB in collaboration with ACP Training may develop a training programme and execute same in partnership with Training Branch where resources are available.
13. Training needs for CIB HQ staff shall be identified by SP Administration and submit his report with findings to ACP CIB after conducting an analysis.
14. From time to time, external organizations may invite ACP CIB to select a candidate to participate in training courses or seminars. ACP CIB after consultation with SSP



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Investigations and SP Administration for internal staff and the Area Crime and Divisional Crime Officers for external staff, will select the most appropriate candidate to be a part of that training.

15. Records of internal and external staff identified and selected by ACP CIB to participate in training seminars or courses shall be maintained and updated accordingly.
16. Training needs identification may be done yearly or as decided by ACP CIB and the following are criteria to be taken into consideration during the identification stage:
 - i. Reports or letters from Clerk of Courts or Crown Counsel;
 - ii. Audit and/or inspection findings;
 - iii. Observations from supervisors, Crime Officers, DDIs etc.;
 - iv. Vetting and tasking of investigative work done;
 - v. Review of case files;
 - vi. New development of laws, policies, regulations or SOPs;
 - vii. Performance Appraisals; and
 - viii. Any other criterion as decided by ACP CIB or Training



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Appendix 1: List of persons who should be in attendance at Case Reviews and Conferences

1. ACP CIB or his designate
2. SSP Investigations CIB HQ
3. A Legal Officer CIB HQ
4. Review & Investigations Team CIB HQ
5. A representative of the Analyst Unit CIB HQ
6. Area Crime Officer
7. Divisional CIB Commander or his designate
8. Divisional Crime Officer or his designate
9. Investigating Officer's supervisor
10. Investigating Officer (IO)
11. Forensic Crime Scene Investigator (FCSI)
12. First responding officers
13. Initial investigator if different from IO
14. Shift commander where applicable
15. Arresting officer
16. A representative from Divisional Intelligence Unit
17. A representative from Divisional Case Management Registry
18. A representative from Proactive Investigation Unit where applicable
19. Any other personnel so instructed by ACP CIB